NATIONAL COMPANY LAW TRIBUNAL
SPECIAL BENCH, COURT – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 19-08-2024 AT 02.30 P.M.THROUGH VIDEO CONVERENCING:

PRESENT : SHRI. JYOTI KUMAR TRIPATHI, HON'BLE MEMBER (JUDICIAL)
SHRI. VEKATARAMAN SUBRAMANIAM, HON'BLE MEMBER (TECHNICAL)

PETITION NUMBER	**: CP(CAA)/38(CHE)2024**
APPLICATION NUMBER	**: CA(CAA)/58(CHE)2024 in IBA/785/2019**
NAME OF THE PETITIONER	**: S Rajendran (Liquiadtor) (Cape Engineers Pvt Ltd)**
NAME OF THE RESPONDENT(S)	**: --**
UNDER SECTION	**: Sec 230-232 of CA, 2013**

ORDER

Ld. Counsel Ms. Elamathi for the Liquidator along with the Liquidator. Ld. Counsel Mr. Pawan Jhabakh for the shareholders. Mr. B. Palani for the OL. Ld. Counsel Mr. Avinash Krishnan Ravi for RD.

2. This is a Company Petition filed by the Petitioner viz. **S. RAJENDRAN, LIQUIDATOR OF CAPE ENGINEERS PRIVATE LIMITED (IN LIQUIDATION)**for admission, fixing a date of hearing for the main Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in respect of date of hearing of the Petition and calling for the objections, if any, to the Scheme of Compromise and Arrangement (hereinafter for brevity referred to as "SCHEME") proposed by **MR. N. AZHAGAPPAN, ALONG WITH M/S. NTC HOLDINGS PRIVATE LIMITED**(hereinafter referred to as "Scheme Proponent").

(CONTD…2)

3. From the perusal of records, it is apparent that the First Motion Application vide **CA(CAA)/58(CHE)/2022 in IBA/785 (CHE)/ 2019**was ordered by this Tribunal on 18.04.2024. The meeting of Stakeholders of Cape Engineers Private Limited (CEPL) held on 3rd June 2024 and the report was filed on 10.06.2024

4. The second motion petition was filed on 17.06.2024. The present petition which is coming up, for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 15 and 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016, brought into effect and on and from 15.12.2016 and it is now hereby ordered as follows:-

(i) The date of hearing of the Petition filed by the Petitioner for the sanction of the Scheme is fixed on **04.12.2024.**

(ii) Notice of the hearing shall be advertised in the newspapers viz., the **"Business Standard – All India Edition" - English** and **"Dinamani – Chennai Edition"- Tamil** not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the above public notice, the Petitioners shall serve the notice of the Petition on the following Authorities namely,

(a) Central Government through the office of the Regional Director (Southern Region), Ministry of Corporate Affairs

(b) Registrar of Companies,Chennai,

(c) Official Liquidator,

(CONTD…3)

(d) Jurisdictional Income Tax Officer having jurisdiction over the respective companies indicating specifically their Permanent Account Number (PAN) in the communication,

(e) Jurisdictional Commercial Taxes officer,

(f) Jurisdictional Employees Provident Fund Organisation officer,

(g) Jurisdictional Employees State Insurance Corporation officer

and other Sectoral regulators,

if any, who may govern the working of the respective companies involved in the Scheme atleast 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in relation to their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) The Petitioner shall file an Affidavit of Service (7 days before the date of hearing of the Petition) in relation to paper publication effected as well as service of notices on the Authorities specified above.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given on or before the date of hearing

(CONTD…4)

fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(viii) The next date of hearing of the Petition shall be on **04.12.2024** for the consideration of the approval of the Scheme as proposed by the Scheme Proponent.

-SD-
VENKATARAMAN SUBRAMANIAM
MEMBER (TECHNICAL)

-SD-
JYOTI KUMAR TRIPATHI
MEMBER (JUDICIAL)